TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter I—Coast Guard, Department of the Treasury

PART 19—WAIVERS OF NAVIGATION AND VESSEL INSPECTION LAWS AND REGULATIONS

VESSELS OPERATED BY PACIFIC MICRONESIAN LINES, INC.

CROSS REFERENCE: For promulgation of a waiver order affecting § 19.35 *Department of the Interior vessels operated by Pacific Micronesian Lines, Inc.*, see Title 46, Chapter I, Part 154, *infra*.

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 917]

ALASKA

PARTIALLY REVOKING EXECUTIVE ORDERS NOS. 8344 OF FEBRUARY 10, 1940 AND 8789 OF JUNE 14, 1941

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Orders No. 8344 of February 10, 1940, and No. 8789 of June 14, 1941, reserving public lands in Alaska for certain public purposes, are hereby revoked so far as they affect the following-described lands:

KODIAK ISLAND

U. S. Survey No. 3098.
U. S. Survey No. 3099.
U. S. Survey No. 3100.
U. S. Survey No. 3101.
U. S. Survey No. 3103.
U. S. Survey No. 3104.

The tracts described aggregate 189.56 acres.

The lands released from withdrawal by this order shall not become subject to the initiation of any rights or to any disposition under the public-land laws until it is so provided by an order of classification to be issued by an authorized officer opening the lands to application under the Small Tract Act of June 1, 1938 (52 Stat. 609; 43 U. S. C. 682a), as amended, with a ninety-one day preference right period for filing such applications by veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944 (58 Stat. 497; 43 U. S. C. 279–284) as amended.

ORME LEWIS,
Assistant Secretary of the Interior.

OCTOBER 6, 1953.

[F. R. Doc. 53-8634; Filed, Oct. 9, 1953; 8:45 a. m.]

TITLE 46—SHIPPING

Chapter I—Coast Guard, Department of the Treasury

Subchapter O—Regulations Applicable To Certain Vessels During Emergency

[CGFR 53-45]

PART 154—WAIVERS OF NAVIGATION AND VESSEL INSPECTION LAWS AND REGULATIONS [1]

VESSELS OPERATED BY PACIFIC MICRONESIAN LINES, INC.

The Secretary of Defense in a letter dated September 10, 1953, recommended a general waiver of all the navigation and vessel inspection laws administered by the United States Coast Guard, as well as the regulations issued thereunder and published in 33 CFR Chapter I or in this chapter, to the extent necessary to permit the operation of certain vessels which are the property of or in the custody of the Department of the Interior and operated under contract by the Pacific Micronesian Lines, Inc., to furnish transportation in the Trust Territory of the Pacific Islands, as well as between the Trust Territory of the Pacific Islands and all the ports of the United States, including its territories and possessions, and foreign ports, and further recommended that the waiver order designated § 154.35, dated June 30, 1953, and published in the FEDERAL REGISTER July 9, 1953 (18 F. R. 4009), be amended to include four non-self-propelled tank barges.

The purpose of the following waiver order designated § 154.35, as well as 33 CFR 19.35, is to waive the navigation and vessel inspection laws and regulations issued pursuant thereto which are administered by the United States Coast Guard to the extent necessary to permit the operation of the U. S. S. "Chicot" (AK 170), U. S. S. "Gunner's Knot" (official number 248054), U. S. S. "Errol" (AKL 4), U. S. S. "Metomkin" (AKL 7), U. S. S. "Roque" (AKL 8), and U. S. S. "Torry" (AKL 11), as well as the schooner "Frela," the schooner "Milleeta," and the survey boat "Baker" or other vessels which may be used as substitutes for these vessels and four non-self-propelled tank barges (YOGN, numbered 13, 18, 20, and 21) which are the property of or in the custody of the Department of the Interior, by the Pacific Micronesian Lines, Inc., to furnish transportation in the Trust Territory of the Pacific Islands, as well as between the Trust Territory of the Pacific Islands and the United States, including its territories and possessions, and foreign ports, until and including June 30, 1954, unless sooner terminated by proper authority, and to supersede the waiver order dated June 30, 1953, and published in the FEDERAL REGISTER July 9, 1953 (18 F. R. 4009). It is hereby found that compliance with the notice of proposed rule making, public rule making procedure thereon, and effective date requirements thereof of the Administrative Procedure Act is impracticable and contrary to the public interest.

By virtue of the authority vested in me as Commandant, United States Coast Guard, by an order of the Acting Secretary of the Treasury, dated January 23, 1951, identified as CGFR 51-1, and published in the FEDERAL REGISTER dated January 26, 1951 (16 F. R. 731), the following waiver order is promulgated and shall be in effect to and including June 30, 1954, unless sooner terminated by proper authority, and § 154.35 is revised as follows:

§ 154.35 *Department of the Interior vessels operated by the Pacific Micronesian Lines, Inc.* (a) Pursuant to the recommendation of the Secretary of Defense in a letter dated June 26, 1953, made under the provisions of section 1 of Public Law 891, 81st Congress (64 Stat. 1120; 46 U. S. C., Sup., note prec. 1), I hereby waive in the interest of national defense compliance with the provisions of the navigation and vessel inspection laws administered by the United States Coast Guard, as well as the regulations issued thereunder and published in 33 CFR Chapter I or in this chapter, to the extent necessary to permit the operation of the U. S. S. "Chicot" (AK 170), U. S. S. "Gunner's Knot" (official number 248054), U. S. S. "Errol" (AKL 4), U. S. S. "Metomkin" (AKL 7), U. S. S. "Roque" (AKL 8), and U. S. S. "Torry" (AKL 11), as well as the schooner "Frela," the schooner "Milleeta," and the survey boat "Baker" or other vessels which may be used as substitutes for such vessels, which are the property or in the custody of the Department of the Interior, and operated by the Pacific Micronesian Lines, Inc., in the Trust Territory of the Pacific Islands, as well as between the Trust Territory of the Pacific Islands and all the ports of the United States, including its territories and possessions, and foreign ports, and this waiver order shall be in effect from July 1, 1953, to and including June 30, 1954, unless sooner terminated by proper authority.

(b) Pursuant to the recommendation of the Secretary of Defense in a letter dated September 10, 1953, made under the provisions of section 1 of Public Law 891, 81st Congress (64 Stat. 1120; 46 U. S. C. Sup., note prec. 1), I hereby waive in the interest of national defense compliance with the provisions of the navigation and vessel inspection laws administered by the United States Coast Guard, as well as the regulations issued thereunder and published in 33 CFR Chapter I or in this chapter, to the extent necessary to permit the operation of four non-self-propelled tank barges (YOGN and numbered 13, 18, 20, and 21, respectively) which are the property of or in the custody of the Department of the Interior and operated by the Pacific Micronesian Lines, Inc., in the Trust Territory of the Pacific Islands, as well as between the Trust Territory of the Pacific Islands and all the ports of the United States, including its territories and possessions, and foreign ports, and this waiver order shall be in effect from September 2, 1953, to and including June

[1] This is also codified in 33 CFR Part 19.

30, 1954, unless sooner terminated by proper authority.

(64 Stat. 1120; 46 U. S. C. Sup., note prec. 1)

Dated: October 5, 1953.

[SEAL] MERLIN O'NEILL,
Vice Admiral, U. S. Coast Guard, Commandant.

[F. R. Doc. 53-8655; Filed, Oct. 9, 1953; 8:49 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 10595]

PART 1—PRACTICE AND PROCEDURE

PART 3—RADIO BROADCAST SERVICES

TIME FOR FILING APPLICATIONS FOR RENEWAL OF BROADCAST STATION LICENSES; LICENSE PERIODS OF NONCOMMERCIAL EDUCATIONAL FM BROADCAST STATIONS

Correction

In F. R. Doc. 53-8370, appearing at page 6242 of the issue for Wednesday, September 30, 1953, the section designation "§ 3.320" in the third column should read "§ 1.320 *Application for renewal of license; broadcast and nonbroadcast.*"

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR Part 721]

CORN

NOTICE OF DETERMINATIONS PERTAINING TO MARKETING QUOTAS, ACREAGE ALLOTMENTS, AND COMMERCIAL CORN-PRODUCING AREA FOR 1954 CROP

Pursuant to the authority contained in the applicable provisions of the Agricultural Adjustment Act of 1938, as amended (7 U. S. C. 1301, 1322, 1327, 1328, 1329), the Secretary of Agriculture is preparing to determine whether marketing quotas are required to be proclaimed for the 1954 crop of corn, to determine and proclaim the commercial corn-producing area and the acreage allotment of corn for the calendar year 1954, and to apportion such acreage allotment among counties and farms within the commercial corn-producing area.

Section 322 of the act provides that whenever in any calendar year the Secretary determines (1) that the total supply of corn for the marketing year beginning in such calendar year will exceed the normal supply by more than 20 per centum, or (2) that the total supply of corn for the marketing year ending in such calendar year is not less than the normal supply for the marketing year so ending and that the average farm price for corn for three successive months of the marketing year so ending does not exceed 66 per centum of parity, the Secretary shall, not later than November 15 of such calendar year, proclaim such fact and marketing quotas shall be in effect in the commercial corn-producing area for the crop of corn grown in such area in the next calendar year.

Section 327 of the act requires that the Secretary, not later than February 1, 1954, ascertain and proclaim the commercial corn-producing area for the calendar year 1954.

Section 328 of the act provides that the acreage allotment of corn for any calendar year shall be that acreage in the commercial corn-producing area which, on the basis of the average yield for corn in such area during the ten calendar years immediately preceding such calendar year, adjusted for abnormal weather conditions and trends in yield, will produce an amount of corn in such area which the Secretary determines will, together with corn produced in the United States outside the commercial corn-producing area or imported, make available a supply for the marketing year beginning in such calendar year, equal to the normal supply. The Secretary is required to proclaim such acreage allotment for the 1954 crop not later than February 1, 1954.

Section 329 (a) of the act provides that the acreage allotment for corn shall be apportioned among the counties in the commercial corn-producing area on the basis of the acreage seeded for the production of corn during the ten calendar years immediately preceding the calendar year in which the apportionment is determined (plus, in applicable years, the acreage diverted under previous agricultural adjustment and conservation programs), with adjustments for abnormal weather conditions and for trends in acreage during such period and for the promotion of soil-conservation practices, but no downward adjustment for the promotion of soil-conservation practices may exceed two per centum of the total acreage allotment which would otherwise be made to such county. Section 329 (b) of the act provides for the apportionment of the county allotment among farms within the county on the basis of tillable acreage, crop-rotation practices, type of soil, and topography.

As defined in section 301 of the act, for the purpose of these determinations, "total supply" for any marketing year is the carry-over of corn for such marketing year, plus the estimated production of corn in the United States during the calendar year in which such marketing year begins and the estimated imports of corn into the United States during such marketing year; "normal supply" for any marketing year is the estimated domestic consumption of corn for the marketing year ending immediately prior to the marketing year for which normal supply is being determined, plus the estimated exports of corn for the marketing year for which normal supply is being determined, plus ten per centum of such consumption and exports, subject to such adjustments for current trends in consumption and for unusual conditions as the Secretary deems necessary; "marketing year" for corn is the period October 1–September 30; and "commercial corn-producing area" is all counties in which the average production of corn (excluding corn used as silage) during the ten calendar years immediately preceding the calendar year for which such area is determined, after adjustment for abnormal weather conditions, is 450 bushels or more per farm and 4 bushels or more for each acre of farm land in the county, including also any county bordering on such commercial corn-producing area which (or in which there is a minor civil division which) is likely to produce 450 bushels or more per farm and 4 bushels or more per acre of farmland, and excluding any county from the area which is not likely to meet such production requirements, for the calendar year for which the area is being determined.

Section 322 of the act requires the holding of a referendum within twenty days after the date of the issuance of the proclamation of marketing quotas to determine whether farmers who would be subject to such quotas favor or oppose such quotas. Section 362 of the act requires that notices of farm acreage allotments shall insofar as practicable be mailed to the farm operators in sufficient time to be received prior to the date of the referendum. Accordingly, in the event that marketing quotas are proclaimed on the 1954 crop of corn, it will be necessary that the commercial corn-producing area and the acreage allotment for corn for the calendar year 1954 be determined and proclaimed, and the acreage allotment apportioned among counties and farms, on or about the same date on which marketing quotas are proclaimed.

Prior to making any of the foregoing determinations and proclamations with respect to the 1954 crop of corn, apportionment of the acreage allotment among counties, and the formulation of regulations for the establishment of farm acreage allotments, consideration will be given to data, views, and recommendations pertaining thereto which are submitted in writing to the Director, Grain Branch, Production and Marketing Administration, United States Department of Agriculture, Washington 25, D. C. All written submissions must be postmarked not later than ten days after the date of publication of this notice in the FEDERAL REGISTER.

Issued at Washington, D. C., this 7th day of October 1953.

HOWARD H. GORDON,
Administrator.

[F. R. Doc. 53-8665; Filed, Oct. 9, 1953; 8:51 a. m.]

[7 CFR Part 918]

[Docket No. AO 219-A2]

HANDLING OF MILK IN MEMPHIS, TENNESSEE, MARKETING AREA

NOTICE OF HEARING ON PROPOSED AMENDMENTS TO TENTATIVE MARKETING AGREEMENT AND TO ORDER

Pursuant to the Agricultural Marketing Agreement Act of 1937, as amended